BUDGET STEEL (PVT) LTD
versus
SADIE MOTORS (PVT) LTD
and
CITY OF HARARE
and
REGISTRAR OF DEEDS

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 20 & 25 June 2025

Opposed Application

T. T. G. Musarurwa, for the applicant
N. R Masamvu with *T. S. Mujungwa* for 1st respondent
N. M Chitiyo, for 2nd respondent

MAMBARA J: These consolidated proceedings concern a protracted dispute over ownership and possession of Stand No. 307 Willowvale Township, Harare. Two applications were heard together: (1) an application by Sadie Motors (Pvt) Ltd ("Sadie Motors"), HCH 6435/25, seeking the eviction of Budget Steel (Pvt) Ltd ("Budget Steel") from the property, and (2) a counter-application by Budget Steel, HC 8266/22, seeking cancellation of Deed of Transfer No. 696/2021 under which Sadie Motors obtained title to the property and an order for re-transfer of the property to Budget Steel. For the sake of convenience, Budget Steel shall be called the applicant and Sadie Motors shall be called the first respondent in this judgment. The city of Harare and the Registrar of Deeds shall remain the second respondent and third respondent.

The core facts are largely common cause and trace back over three decades.

In 1992, Budget Steel entered into an agreement to purchase Stand 307 Willowvale from the City of Harare. Although disputed by the second respondent, Budget Steel alleges that it made a substantial payment of ZW$190,000 toward the purchase price, evidenced by a cheque attached to the record. Budget Steel's position is that this sale entitled it to transfer of title upon full performance.

In 1999, before Budget Steel obtained transfer, the City of Harare purported to sell the same Stand 307 Willowvale to Sadie Motors. Upon discovering this double sale, Budget Steel urgently approached this Court for relief. On 24 November 1999, OMERJEE J. granted a provisional interdict in case HC 7307/99 restraining the City and Sadie Motors from transferring or further alienating the property pending resolution of the dispute. In effect, the 1999 provisional order preserved the status quo with Budget Steel in possession and barred any transfer of title to Sadie Motors.

The 1999 matter was thereafter converted into an action for final determination of the parties' rights. Pleadings were filed, and the case progressed slowly. By 2006, the matter had reached the Pre-Trial Conference stage before BLACKIE J. However, at that point the action was postponed *sine die* at the parties' instance or by consent. No further steps were taken by either party to revive or prosecute the action for the next 15 years. The provisional interdict granted by OMERJEE J. was never discharged, nor was the action formally dismissed, it simply languished on the inactive roll.

In 2021, despite the still-extant provisional order, the property was transferred to Sadie Motors. A Deed of Transfer No. 696/2021 was registered in Sadie Motors' name on 5 May 2021. How this transfer was allowed to occur in the face of a standing court order is a matter of serious concern. Armed with registered title, Sadie Motors soon demanded that Budget Steel vacate the property. Budget Steel refused, maintaining that it was the true owner in equity and that the transfer to Sadie Motors was void or wrongful given the 1999 court order.

This standoff led to the present applications. Sadie Motors, as the registered owner filed an application for the eviction of Budget Steel from Stand 307 Willowvale. Budget Steel, in turn, launched a counter-application seeking an order to cancel Sadie Motors' title deed and direct the Registrar of Deeds to re-transfer the property to Budget Steel's name. The City of Harare and the Registrar of Deeds were cited as respondents in the counter-application for obvious interest in the title. The two applications were by order of this Court consolidated and heard together as one, given that they involve the same property and intertwined questions of law and fact.

At the commencement of the hearing, Ms *Masamvi*, counsel for the first respondent, raised some preliminary points. I dismissed all the points basically because they are not dispositive of the matters. The history of the matter shows that the cases could not be completed because each time the matters are set down preliminary points are raised.

In the instant case counsel for the first respondent raised the issue of the non-filing of a certificate of service relying on r58 (14) and (15) of the High Court rules, 2021. Clearly this is a red herring as the matters have been consolidated and have been set down after the parties had filed all the necessary pleadings. The first respondent is not alleging to have suffered any prejudice at all. There is no merit in this point.

The first respondent resisted the application for the amendment of the draft order on the basis that the amendment was not motivated in the founding affidavit. Again, I dismiss the objection on the basis that the draft order is the final result sought and until granted by the court a draft order remains what it is, a draft.

Now turning to the main matter, Sadie Motors' primary argument is that it holds indisputable legal title by virtue of the 2021 deed and that Budget Steel has no valid claim or right to remain on the property. Sadie Motors contends that the 1999 provisional interdict is superannuated, in other words, that it lapsed or became irrelevant due to the long delay and inactivity in the earlier proceedings. In Sadie's view, Budget Steel effectively abandoned its claim by failing to prosecute the 1999 action for decades, and thus Sadie Motors was free to obtain transfer. Budget Steel, on the other hand, argues that the 1999 court order remained in force at all material times and lawfully precluded any transfer to Sadie Motors. Budget Steel maintains it was the first purchaser of the stand back in 1992 and that under established principles governing double sales of immovable property, its claim to ownership is superior. It seeks cancellation of Sadie's deed on the basis that the transfer was carried out in contravention of a court order and Budget Steel's prior rights. Budget Steel emphasizes that Sadie Motors was never an innocent purchaser, it had notice of Budget's prior purchase and in fact was a party to the earlier litigation and thus Sadie's registered title, obtained in bad faith, cannot be allowed to stand.

Against that background, the Court is called upon to determine the following key issues:

(a) Whether the City of Harare could lawfully transfer the property to Sadie Motors in 2021 while the 1999 interdict and pending action were still extant;

(b) The legal effect (if any) of Budget Steel's prolonged inaction on the continued validity of the 1999 provisional order and on Budget's underlying claim, i.e., was the interim interdict still enforceable or had it lapsed due to the passage of time?

(c) As between Budget Steel and Sadie Motors, which party is entitled to ownership of the stand given the double sale scenario and the competing equities.

(d) Whether, as a consequence, Sadie Motors' eviction claim should be granted or dismissed, and whether Budget Steel is entitled to the relief of cancellation of Sadie's title, including the applicability of section 8 of the Deeds Registries Act [*Chapter 20:05*].

It is common cause that the situation at hand is a double sale. The Stand was sold first to Budget Steel (1992) and later to Sadie Motors (1999) by the same seller, City of Harare. The law governing such double sales in Zimbabwe is well-settled. The basic rule is that the first purchaser should succeed where neither sale has yet been perfected by transfer of title. As was succinctly stated in the leading case of *Guga* v *Moyo & Ors* 2000 (2) ZLR 458 (S), *"The first in time is the stronger in law"*. The first buyer has the preferable right to specific performance, transfer of the property, and the second buyer is typically left to a personal claim for damages against the seller. This rule flows from the maxim *qui prior est tempore potior est jure* (he who is earlier in time has the stronger claim in law). It aims to prevent unscrupulous double-dealing and protect the reasonable expectation of the first contracting party.

However, this is not an absolute rule. Both Zimbabwean and South African jurisprudence recognize that special circumstances may justify departing from the first-in-time principle in order to achieve an equitable result. The onus is on the second purchaser to plead and prove any such special circumstances that would tilt the balance of equities in his or her favour. As the Supreme Court noted in *Barros & Anor* v *Chimphonda* 1999 (1) ZLR 58 (S) and *Mwayipaida Family Trust* v *Madoroba* 2004 (1) ZLR 439 (S), the second purchaser must show that *"the balance of fairness"* so heavily preponderates in favour of the second sale that it would be inequitable to enforce the first sale. Only in exceptional cases, for example, where the second purchaser lacked knowledge of the first sale and has materially changed position in reliance on their purchase, or made valuable improvements, or where the first purchaser unduly delayed and the second would suffer great prejudice, might a court prefer the second purchaser over the first. Absent such compelling factors, the general rule stands: prior in time, stronger in right.

In the present case, applying these principles: Budget Steel is the first purchaser (1992) and Sadie Motors the second purchaser (1999). No transfer had been effected to either party at the time of the double sale in 1999. Thus, as a starting point in terms of the law, Budget Steel's claim to the property is superior to that of Sadie Motors, unless Sadie can demonstrate special equitable circumstances overriding the usual rule. Notably, several Zimbabwean authorities

reinforce this point. In *Crundall Bros (Pvt) Ltd v Lazarus NO* 1991 (2) ZLR 125 (S) and *Charuma Blasting & Earthmoving Services (Pvt) Ltd* v *Njainjai* 2000 (1) ZLR 85 (S), the courts affirmed that, save for exceptional cases, the first purchaser is entitled to specific performance (i.e. transfer of the property), and the second purchaser's remedy is a claim for damages against the seller. This Court adopts the same starting presumption in favour of the first sale.

Sadie Motors has argued, in effect, that special circumstances exist here because Budget Steel slept on its rights for an inordinately long time. The contention is that Budget Steel's decades-long delay in pursuing final relief, coupled with Sadie Motors having paid for the property back in 1999, should tilt the equities in favour of Sadie Motors. The Court acknowledges that inordinate delay by a first purchaser can be a relevant factor in assessing the equities. Indeed, in *Thepson Muzvagwandi & Anor* v *Mai-Kai Real Estate & Ors* HH-114-15 (a case involving a double sale), the court noted that a first purchaser who paid the price but then made no effort for years to effect transfer had manifestly slept on their rights, which was a factor weighing against them. In that case, the court balanced the equities between the dormant first buyer and an active second buyer who had since obtained transfer, and ultimately found the equities to be roughly equal. The implication is that a lengthy, unjustified delay by the first buyer could diminish the weight of their claim, especially if the second buyer was innocent and proactive.

However, each case must turn on its own facts. Crucially, a paramount factor in this case is the second purchaser's knowledge or notice of the first sale. The law draws a sharp distinction between a truly innocent second purchaser and one who bought with knowledge of a prior sale. If a second purchaser acquires transfer of title without notice of the first purchaser's claim, the law will often protect that second purchaser's title as indefeasible, on the reasoning that they are a bona fide purchaser who relied on the public register. In such a scenario, the first purchaser's remedy is limited to damages against the double-dealing seller. But if the second purchaser had knowledge of the prior sale at the time of purchase or transfer, then the second purchaser is not bona fide, and equity will not favour them. In that event, the first purchaser can recover the property from the second purchaser, unless truly special circumstances justify otherwise. The burden is on the second buyer to prove those special circumstances, and they must weigh heavily to override the first buyer's right.

On the facts before this Court, it is beyond dispute that Sadie Motors was at all times aware of Budget Steel's prior purchase and claim. By Sadie's own admission, it became aware

of Budget Steel's interest by 1999 when the provisional interdict was served. Indeed, Sadie Motors was a party to the 1999 High Court proceedings. Thus, unlike the paradigm innocent second buyer who purchases in good faith without notice, Sadie Motors proceeded with eyes open, fully cognizant that Budget Steel had bought the stand years earlier and was asserting its rights. This extinguishes any contention that Sadie is a bona fide purchaser without notice. A purchaser who acquires property with actual or constructive notice of an existing equitable interest or prior contract cannot claim the protective mantle of bona fide purchaser status. As is sometimes said in English law, such a purchaser is not "Equity's darling" and takes the property subject to the prior interest. The Supreme Court in *Guga* v *Moyo* and *Barros* v *Chimphonda* made the same point: a second purchaser with knowledge cannot keep the property as against the first buyer, the later registration of title will be set aside at the instance of the first buyer, and the second buyer left to a damages claim. Or, if it can be shown that a purchaser acted in bad faith, the registration he or she has obtained amounts to no registration at all. In other words, a title obtained by a purchaser with notice of a prior equity is liable to be cancelled as if it were void *ab initio*.

In light of the above, Sadie Motors starts from a very disadvantaged position in equity. It purchased with notice of Budget Steel's rights. It then waited and eventually obtained transfer in the teeth of a court order. This is not a scenario where the second purchaser can appeal to the conscience of the court for protection, quite the opposite. Bad faith or notice on the part of the second purchaser extinguishes the sanctity of their title and bolsters the first purchaser's entitlement to relief. Accordingly, the presumption that the first sale should prevail remains very strong here, unless Sadie Motors can show some other compelling special circumstance in its favour apart from the delay factor.

The Court has considered whether Sadie Motors has demonstrated any additional equitable factors, for instance, did Sadie invest in improvements on the property, or significantly change its position in reliance on an expectation of eventually obtaining the land? There is no evidence of any such improvements or investments by Sadie Motors. In fact, it appears Budget Steel has remained in occupation of the stand throughout, which likely means Sadie Motors was unable to take possession. Sadie Motors' prejudice consists chiefly in having paid the City for the stand in 1999 and then being kept out of the property. While that is certainly a harm, it is a harm inherent in any double sale where the second buyer is thwarted. It is adequately remedied by a refund of the purchase price with interest or damages from the

seller. Sadie Motors does not allege irreparable or exceptional harm beyond that. By contrast, Budget Steel, as first purchaser, paid for the stand as far back as 1992 and has waited over thirty years without receiving title. Budget Steel also had to resort to legal action to protect its rights. In these circumstances, the balance of equities does not weigh so heavily in Sadie's favour as to displace the normal rule. Both parties have suffered prejudice due to the City's double-selling and the long delay, but Sadie Motors' predicament is largely self-inflicted by proceeding despite notice of Budget's prior claim. Equity does not reward a conscious risk-taker who disregards known competing rights.

The Court concludes that Budget Steel, as the first purchaser, has the superior legal and equitable claim to Stand 307 Willowvale. Sadie Motors has failed to prove special circumstances that would justify allowing it to retain the property. This conclusion is reinforced by the strong evidence of Sadie's notice and the impropriety of the transfer to Sadie as discussed below.

A central question is whether the City of Harare had lawful authority to transfer the property to Sadie Motors in 2021 given the existence of the 1999 provisional interdict. The provisional order granted by OMERJEE J. in 1999 expressly interdicted the transfer of Stand 307 Willowvale to Sadie Motors or any further transfer pending the outcome of the dispute. That order was never discharged or set aside. It was, and technically still is, a binding court order of indefinite duration until finalization of the action. At no point did Sadie Motors or the City apply to court to have the interim interdict lifted or the matter formally dismissed for want of prosecution. Instead, Sadie Motors unilaterally obtained transfer through the Deeds Office, apparently on the strength of its 1999 agreement of sale, disregarding the extant court order.

It is a fundamental principle of law that a court order remains valid and enforceable until it is properly set aside by a court of competent jurisdiction. Even if a party believes an order has become irrelevant or unjust over time, the order cannot be ignored or violated. The correct course is to return to court for modification or rescission. As the South African court stated in *Moraitis Investments (Pty) Ltd* v *Montic Dairy (Pty) Ltd* , 799/2016 [2017] ZASCA 54, *"it is trite that a court order remains valid until set aside by a competent court."* The rule of law demands that court orders be obeyed unless and until overturned on appeal or rescinded. This holds true in Zimbabwe as well. Parties cannot simply deem a court order superannuated by lapse of time. They must obtain a formal discharge of that order before acting contrary to it.

In the present case, the 1999 provisional interdict was an operative court order in 2021. While it is called "provisional," that refers to its interim nature pending final judgment. The order had no built-in expiry date; it was effectively an injunction in force "until the finalization of the action or until further order of the court." Since the action was never finalized and no further order was issued, the interdict was still extant when the City processed the transfer to Sadie Motors. Transferring the property in the face of that court order was unlawful. It constituted a flagrant disregard of a judicial directive. In fact, it can be characterized as contemptuous conduct by those involved in effecting the transfer though these contempt issues are not before this Court, the point underscores the gravity of flouting the order.

The legal effect of an act carried out in defiance of a court order is a nullity. One cannot benefit from an act that violates an express injunction of the court. To borrow the famous phrase of Lord Denning MR: *"You cannot put something on nothing and expect it to stand. It will collapse." Macfoy v United Africa co. Ltd [1961] 3 ALL ER 1169 @1172.* Here, Sadie Motors' title was built on nothing, indeed on worse than nothing. On a prohibited act. Thus, Sadie's Deed of Transfer No. 696/2021 is tainted at its root and cannot confer any lawful rights. The Court is compelled to regard that deed as having been improperly and invalidly obtained.

It is useful to note that this situation also invokes the doctrine of *lis pendens*. Under common law, when litigation over a property is pending, a subsequent purchaser of that property, takes subject to the outcome of the litigation. The rationale is to prevent the alienation of the subject matter of a dispute in order to prejudice an opponent. In this case, because Budget Steel's action, initiated in 1999, was still pending albeit dormant, any transfer to Sadie Motors during the pendency of that action is not effective against Budget Steel's claim. The law treats Sadie Motors as having acquired the property subject to Budget Steel's *lis* (lawsuit). In practical terms, Sadie Motors stepped into the shoes of the City of Harare with no better title than the City could have conveyed after final judgment. Since Budget Steel's suit sought to enforce its 1992 sale and prevent transfer to Sadie, the transfer in 2021 does not defeat Budget's claim. This is consistent with the Roman-Dutch principle that *pendente lite nihil innovetur* – nothing new should be introduced while litigation is pending. A classic South African statement of this principle is found in *Lourenco* v *Ferela* (1998 (3) SA 281 (T), where the court noted that a sale pendente lite cannot prejudice the plaintiff's rights in the litigation. Likewise, Zimbabwean courts have recognized *lis pendens* as a defence to parallel proceedings and as a means to bind third parties who acquire disputed property while a case is unresolved. In sum, Sadie Motors,

having taken transfer during ongoing litigation and in contempt of an interdict, acquired no immune or better right. Its position is fully subject to the court's determination of the prior dispute.

Sadie Motors argued that the 1999 provisional order had become spent or superannuated by 2021 due to the long delay, implying that the City was free to ignore it. This argument is without merit in law. A court order does not simply evaporate with time. If Budget Steel had failed to pursue the action, the proper remedy for Sadie Motors was to apply to the Court for a dismissal of the action for want of prosecution, and simultaneously seek a discharge of the interim interdict. Indeed, our rules permit a defendant to seek dismissal if a plaintiff unreasonably delays litigation. But significantly, Sadie Motors never took such steps. It chose not to bring the matter back to court, perhaps because it knew the court was likely to insist on adhering to the first sale and instead resorted to a self-help tactic of pushing through a transfer. The Court cannot countenance such self-help in violation of its own order. To do so would undermine the authority of the courts and the integrity of judicial process. No matter how stale Sadie Motors perceived the interdict to be, it was obliged to respect it or formally challenge it in court. Its unilateral decision to treat the order as obsolete is ineffective legally.

Comparatively, the concept Sadie Motors invokes, that a claimant's inaction can cause an injunction to lapse, is akin to the equitable doctrine of laches or undue delay. For the avoidance of doubt, the court is quite clear that equity is not part of our law. The arguments relating to equity are for illustration purposes only and not for the purposes of resolving this matter.

It is true that courts of equity in the United Kingdom and United States recognize laches or undue delay as a defence. Equity will withhold relief if a claimant has unreasonably delayed in enforcing rights and thereby prejudiced the defendant. The famous formulation of laches by Lord Selborne in *Lindsay Petroleum Co* v *Hurd* (1874) is often cited: *"the doctrine of laches in courts of equity is not an arbitrary or technical doctrine. Where it would be practically unjust to give a remedy, either because the claimant by his conduct has waived or abandoned it, or because by his delay he has put the other party in a position where it would be inequitable to enforce the claim, then lapse of time and delay are most material"*. In short, laches requires both *unreasonable delay* and *resulting prejudice* or change of position that makes it unfair to grant relief.

Sadie Motors essentially invites the court to apply a form of laches and hold that Budget Steel's long delay in prosecuting the 1999 action rendered the interdict and its claim unenforceable. There are two answers to this. First, as a matter of procedure, laches (or inordinate delay) should have been raised with supporting evidence in a proper application to discharge the interdict or to dismiss the action. It cannot be used as an ex post facto justification for violating a court order. Until a court declares an order discharged or a claim barred for delay, the parties must assume the order/claim remains live. Second, even if one considers the substance of laches, Sadie Motors' case is weak. Certainly, there was substantial delay by Budget Steel – nearly 15 years of inaction from 2006 to 2021. That delay is prima facie unreasonable. However, laches also demands a showing of prejudice to the party invoking it, and that it would be inequitable to enforce the right after the delay. Here, any prejudice to Sadie Motors from the delay is tempered by several factors as shown hereunder.

Sadie Motors was aware all along that Budget Steel claimed the property and had an interdict in place. Sadie was not a blameless victim of surprise. For 15+ years Sadie Motors itself acquiesced in the status quo of non-transfer. It did not push for an expeditious trial or seek relief from the court. In fact, Sadie Motors enjoyed the benefit of Budget Steel's inactivity in the sense that Sadie was also not forced to pay the remainder of the price or to litigate. In equity, one who knowingly stands by and allows a matter to remain unresolved cannot later cry foul solely at the opponent's delay. Both parties were inactive; Sadie Motors did not demonstrate any overt prejudice caused specifically by the delay (such as loss of evidence, etc.). There was indeed a feeble attempt to introduce this in oral evidence when counsel for Sadie Motors submitted that dur to lapse of time, it will be very difficult to resolve this matter because the second respondent's employees who handled this matter had either retired, resigned or are dead.

Apart from the passage of time, Sadie Motors did not materially change its position during the delay in a way that makes it now inequitable to restore the status quo ante. For example, Sadie did not develop the land or sell it to an innocent third party. The property remained occupied by Budget Steel or its nominee. Thus, granting Budget Steel relief now, cancelling Sadie's title, merely returns the situation to what it effectively was all along, Budget Steel in possession and entitled to seek transfer, Sadie Motors relegated to a claim for refund/damages. This is not a case where a late enforcement would visit some new injustice upon Sadie beyond the loss of a windfall it should never have received.

The maxim *"he who comes into equity must come with clean hands"* also applies. Sadie Motors' hands are not entirely clean – it attempted an end-run around a court order. Courts are generally less receptive to an equitable defence like laches from a party that itself acted inequitably. By contrast, Budget Steel's lapse was one of inaction (omission), whereas Sadie Motors' was one of action in breach of the law. Between the two, Sadie's conduct is more blameworthy.

There is a strong public interest in upholding the authority of court orders. Even if Budget Steel was indolent, allowing a transfer done in contempt of court to stand would send the wrong message. The court must discourage litigants from taking matters into their own hands. Thus, even if a court might have been persuaded to discharge the interdict due to delay had Sadie applied, that does not retrospectively legalize the transfer that was done without court permission.

In view of these considerations, the Court finds that the prolonged delay does not render the 1999 order unenforceable. While the delay is regrettable and has been taken into account in the balance of equities, it is ultimately outweighed by Sadie Motors' notice of the prior claim and its unlawful conduct. The law certainly aids the vigilant, not those who slumber on their rights, but it does not aid those who violate rights while others slumber. Budget Steel's lack of vigilance might have justified relief to Sadie Motors had it sought it through the courts, but it cannot justify Sadie's unilateral flouting of an injunction. In sum, the 1999 provisional interdict was valid and in force at the time of transfer in 2021, and thus the transfer to Sadie Motors was unlawful and voidable at the instance of Budget Steel.

Given the conclusions above, it follows that Sadie Motors' eviction claim cannot succeed. An eviction order is premised on the applicant's clear right of ownership or lawful title vis-à-vis the respondent. Here, Sadie Motors' title is fatally compromised. The Court has found that Sadie's Deed was improperly obtained and that Budget Steel has the superior claim to ownership. Sadie Motors therefore lacks the legal right to evict Budget Steel. Budget Steel's continued occupation is justified pending transfer of title to it, of course after the resolution of HC 7307/99. Sadie's application for eviction must accordingly be dismissed.

Turning to Budget Steel's counter-application, the main relief sought is an order cancelling Sadie Motors' title and a return to case number HC 7307/99 so that the substantive issue is resolved to finality. The Deeds Registries Act [*Chapter 20:05*] provides the mechanism for cancellation of deeds. Section 8 of the Act explicitly states that "Registered deeds [of

transfer] are not to be cancelled except upon an order of court." In other words, once a deed of transfer has been registered in someone's name, the Registrar of Deeds cannot unilaterally cancel it; a High Court order is required to set aside or cancel a title deed. This statutory provision empowers the Court, in appropriate cases, to direct the Registrar to cancel a deed, for example, where the deed was obtained fraudulently, or in error, or as here, where the underlying transaction is void or voidable. The Court has inherent jurisdiction and statutory authority under section 8 to cancel a title deed in order to do justice between the parties and correct the registers. The present case is a textbook example for invoking that remedy.

Having found that Sadie Motors' Deed No. 696/2021 was wrongfully obtained in contravention of a court order, this Court will grant an order for cancellation of that deed. The Registrar of Deeds will be directed to cancel the deed in Sadie Motors' name relating to Stand 307 Willowvale Township. The effect is that title to the property reverts to the status prior to that transfer. In practical terms, the property will be deemed registered again in the name of the seller.

Disposition

For the reasons discussed above, the Court finds in favour of Budget Steel (Pvt) Ltd as against Sadie Motors (Pvt) Ltd. The 1999 provisional order was valid and operative at the time of the contested transfer, rendering that transfer unlawful. Accordingly, the following order is made:

1. Sadie Motors' application for eviction of Budget Steel from Stand No. 307 Willowvale Township be and is hereby dismissed.
2. The Deed of Transfer No. 696/2021 in the name of Sadie Motors (Pvt) Ltd, relating to Stand No. 307 Willowvale Township, be and is hereby cancelled. The Registrar of Deeds is directed and authorized to cancel the said deed from the registers.
3. The applicant shall, within 30 days of this order, cause the Registrar of the High Court to set down case number HC 7307/99 for hearing before a judge.
4. Should the applicant fail to set down the matter in terms of paragraph (3) above, the matter shall be deemed abandoned.
5. Each party shall bear its own costs.

MAMBARA J: ……..

Mtombeni, Mukwesha and Muzavazi, applicant's legal practitioners
Tavenhave & Machingauta, 1st respondent's legal practitioners
Gambe Law Group, 2nd respondent's legal practitioners